



DEPARTMENT OF THE NAVY
NAVAL FACILITIES ENGINEERING SYSTEMS COMMAND ATLANTIC
6506 HAMPTON BOULEVARD
NORFOLK VA 23508-1278

J&A No. 26-06

**JUSTIFICATION AND APPROVAL
FOR USE OF OTHER THAN FULL AND OPEN COMPETITION**

1. Contracting Activity.

Department of the Navy, Naval Facilities Engineering Systems Command (NAVFAC) Atlantic, Norfolk, Virginia

2. Description of the Action Being Approved.

Request utilizing brand name and exclusive licensing agreements for the procurement of Supervisory Control and Data Acquisition (SCADA) products under pending solicitation N62470-25-R-0006 MILCON P732 DBB, Electrical Distribution System Upgrades.

3. Description of Supplies/Services.

Provide HSQ remote terminal units (RTU) for control and integration of the industrial control systems to be procured under the above solicitation. [REDACTED]

[REDACTED] The equipment and services to be rendered are valued at less than [REDACTED].

Category	Est. Hours	Cost (estimated)
Project management	[REDACTED]	
Engineering and design		
SCADA/HMI development		
FAT and SAT		
On-site installation and commissioning		
Training and documentation		
Subtotal (labor)		
Contingency		
Total estimated cost		
Full Burdened Labor Cost		

4. Statutory Authority Permitting Other Than Full and Open Competition.

This request is submitted pursuant to Title 10 U.S.C. 3204(a)(1), as implemented by FAR 6.302-1 and 6.302-1(c), as only one responsible source and no other supplies or services will satisfy agency requirements. Further, as provided under FAR 6.302-1, this DOD procurement is for critical infrastructure items from the single responsible source (HSQ), and this procurement is necessary for the continued functionality of highly specialized utility SCADA controls services and because a change would result in a substantial duplication of sunk costs to recreate a compatible system with another manufacturer's proprietary product.

5. Rationale Justifying Use of Cited Statutory Authority.

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

6. Description of Efforts Made to Solicit Offers from as Many Offerors as Practicable.

For the reasons set forth in Paragraph 5, other than full and open competition is in the Government's best interest. However, in an effort to solicit from as many offers as practicable, only a portion of this acquisition is other than full and open competition. Utilization of a brand name will only be for the SCADA products identified. For this installation the existing ICS is HSQ, compatibility is essential, see note in item #5 above.

NAVFACENGSYSCOM PACIFIC issued a sources sought through SAM.GOV in 2022 for similar purpose (N6274222HSQT) which resulted in no other sources found (POC: Josie G Damo-Agcaoili NAVFAC PAC). NAVFACENGSYSCOM ATLANTIC did not duplicate these efforts. Further, J&A 25-03 was signed by the NAVFAC LANT Commander on 20 March 2025 for this same purpose.

7. Determination of Fair and Reasonable Cost. The Contracting Officer has determined the anticipated cost to the Government of the supplies/services covered by this J&A will be fair and reasonable.

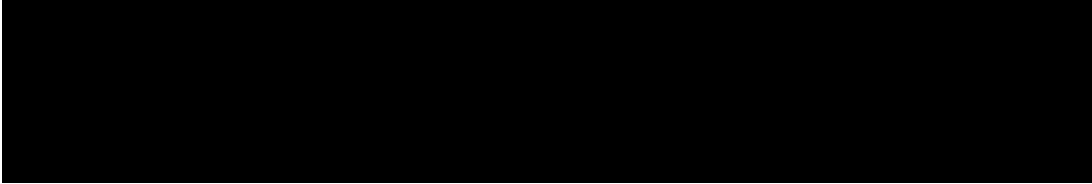
8. Actions to Remove Barriers to Future Competition.

For the reasons set forth in Paragraph 5, NAVFAC Atlantic has no plans at this time to compete future contracts for the types of supplies/services covered by this document. If another potential source emerges, NAVFAC Atlantic will assess whether competition for future requirements is feasible

CERTIFICATIONS AND APPROVAL

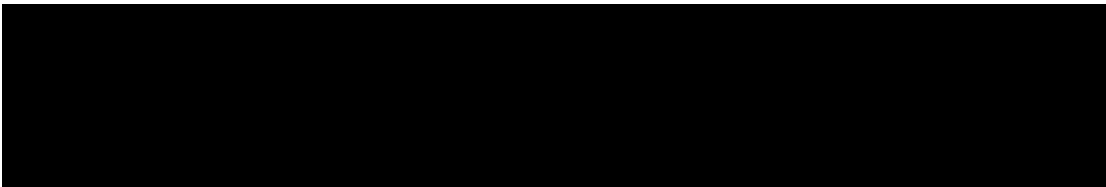
TECHNICAL/REQUIREMENTS CERTIFICATION

I certify that the facts and representations under my cognizance which are included in this Justification and its supporting acquisition planning documents, except as noted herein are complete and accurate to the best of my knowledge and belief.



LEGAL SUFFICIENCY REVIEW

I have determined this Justification is legally sufficient.



CONTRACTING OFFICER CERTIFICATION

I certify that this Justification is accurate and complete to the best of my knowledge and belief.

